

--SUMMARY--

Decision No. 1332/18

04-Jun-2018

M.Crystal

- In the course of employment (lunch)
- In the course of employment (parking lots)
- Right to sue

The defendant in a civil case applied to determine whether the plaintiff's right of action was taken away.

The plaintiff left his office at about 11:30 am, and was walking in a municipal parking lot on his way to his vehicle, when he slipped and fell. The plaintiff was proceeding home for lunch, as was his usual practice. After lunch, he would go to see clients before returning to the office.

The plaintiff's lunch break involved activities beyond merely obtaining sustenance from eating food. While at home, he would also exercise on a treadmill and watch some television. Such activities were not reasonably incidental to employment. Further, the accident did not occur on the employer's premises but, rather, in a municipal parking lot. In addition, although the plaintiff's employment required him to travel to visit potential clients, the plaintiff had not begun that activity at the time of the accident. He was going home for his lunch break; this was not required as a condition of his employment.

The plaintiff was not in the course of employment at the time of the accident. His right of action was not taken away.

15 Pages

References: Act Citation

- WSIA

Other Case Reference

- [w3218s]
- BOARD DIRECTIVES AND GUIDELINES: Operational Policy Manual, Documents No. 15-02-02, 15-03-04, 15-03-05, 15-03-08
- TRIBUNAL DECISIONS CONSIDERED: 1238/08 consd, 2296/08 distd

Style of Cause:

Neutral Citation: 2018 ONWSIAT 1818



WORKPLACE SAFETY AND INSURANCE APPEALS TRIBUNAL

DECISION NO. 1332/18

BEFORE: M. Crystal: Vice-Chair

HEARING: May 1, 2018 at Sudbury
Oral

DATE OF DECISION: June 4, 2018

NEUTRAL CITATION: 2018 ONWSIAT 1818

APPLICATION FOR ORDER UNDER SECTION 31 OF THE *WORKPLACE SAFETY AND INSURANCE ACT, 1997*

APPEARANCES:

For the applicant: Mr. P. Diavolitsis, Lawyer

For the respondent: Mr. B. Julien, Lawyer

Interpreter: Not applicable

**Workplace Safety and Insurance
Appeals Tribunal**

505 University Avenue 7th Floor
Toronto ON M5G 2P2

**Tribunal d'appel de la sécurité professionnelle
et de l'assurance contre les accidents du travail**

505, avenue University, 7^e étage
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REASONS

(i) Introduction

- [1] This is an application under section 31 of the *Workplace Safety and Insurance Act* (“the Act”) by the Applicant, who is the defendant in an action filed in North Bay, in the Ontario Superior Court of Justice, as File No.CV-14-6018. The Respondent to this application is the plaintiff in the action.

(ii) Issues

- [2] The issue in this application is whether the Respondent’s right of action is taken away pursuant to section 31 of the *Act*. In order to determine these issues, the following questions must be answered:

1. At the time of the subject accident, was the Respondent a “worker” within the meaning of *Act*?
2. At the time of the subject accident, was the Respondent employed by a Schedule 1 employer?
3. At the time of the subject accident, was the Respondent in the course of his employment?
4. Is the Applicant a Schedule 1 employer.

(iii) Background

- [3] The Respondent suffered a slip and fall accident on March 24, 2014 when he sustained personal injuries which included a fracture of the left ankle. The accident occurred between about 11:00 and 11:30 a.m., after the Respondent had left his office at his regular place of employment, and while he was walking through a municipal parking lot, making his way to his personal vehicle. The Respondent has alleged that there was ice and snow on the surface of the parking lot and that this contributed to his fall. The applicant is the municipal corporation alleged to have control of the parking lot where the accident occurred.
- [4] At the hearing, counsel for the Applicant and counsel for the Respondent agreed to certain facts associated with this application. In particular, counsel agreed that:
- At the time of the accident, the Respondent was a “worker” within the meaning of the *Act*; and
 - At the time of the accident, the Respondent was employed by a Schedule 1 employer.
- [5] A further issue, which is central to this application, about which there was not agreement between the parties, is whether the Applicant, a municipal corporation, was a Schedule 1 employer at the time of the accident. The case materials included a document, printed on the Board’s letterhead, entitled “eClearance”. The subject of the document was the municipal corporation which is the Applicant in this proceeding. The document indicated the “Legal Name” of the municipal corporation, and indicated that the “Rate Group and Description” was

“999: Schedule 2”. It was on this basis that the Respondent advanced the position that the Applicant could be a Schedule 2 employer.

[6] It should be noted that, although section 28 of the *Act* provides that a worker employed by a Schedule 1 employer is not entitled to commence an action against “any Schedule 1 employer”, the *Act* does not limit the right of a worker employed by a Schedule 1 employer to commence an action against a Schedule 2 employer. It follows that if the Applicant is a Schedule 2 employer, it would be necessary to dismiss this application without consideration of other factors or evidence.

[7] I note, however, the Tribunal requested a status check from the Board in relation to the Applicant’s status with the Board. The case materials included a Tribunal memo, dated July 20, 2016, prepared by a member of the Tribunal’s staff, which stated that a status check provided by the Board to the Tribunal had indicated that the Applicant “is an active Schedule 1 employer with a coverage start date of June 29, 1995.”

[8] Further, in order to clarify this issue, the Applicant had requested further confirmation from the Board about its status with the Board. At the hearing, counsel for the Applicant provided me with a copy of a letter, dated April 25, 2018, from the Board, which was entered as a hearing exhibit. The letter, which was addressed to the Applicant, stated:

Subject: WSIB Coverage

This is to confirm that [the Applicant municipal corporation] is registered with the Workplace Safety and Insurance Board (WSIB) and currently has coverage under Schedule 1.

The Schedule 2 account has been inactivated prior to June 1995.

[9] At the hearing, after this issue was raised, both counsel indicated that they had no further submissions to make on the question of whether the Applicant was a Schedule 1 employer, and that they wanted me to make a determination on the issue on the basis of the available information.

[10] I accept the information included in the status check provided by the Board to the Tribunal, reflected in the Tribunal memo, dated July 20, 2016, that the Applicant has been a Schedule 1 employer since June 29, 1995. This is also confirmed in the letter from the Board dated April 25, 2018. That letter appears to indicate that the Applicant may have been a Schedule 2 employer prior to June 1995.

[11] I note that the circumstances surrounding the preparation of the “eClearance” document was not evidence that was before me in this application. Further, although there was a date on the document which may have been the date when it was generated (i.e., “28/04/2017”), there was no indication on the document of the date when the information included in the document was current. Accordingly, I attribute limited weight to the document, particularly in light of the other information provided by the Board on this issue.

[12] Accordingly, I find that the, at the time of the accident on March 24, 2014, the Applicant was a Schedule 1 employer.

[13] It follows that the only remaining issue to be determined in this application is whether, at the time of the accident, the Respondent was in the course of his employment. At the hearing, both counsel indicated that this was the central issue to be determined in this application.

(iv) Law and policy

[14] Section 31 of the WSIA provides that a party to an action or an insurer from whom statutory accident benefits (SABs) are claimed under section 268 of the *Insurance Act* may apply to the Tribunal to determine whether: a right of action is taken away by the Act; whether a plaintiff is entitled to claim benefits under the insurance plan; or whether the amount a party to an action is liable to pay is limited by the Act.

[15] Sections 26 through 29 of the WSIA provide the following:

26(1) No action lies to obtain benefits under the insurance plan, but all claims for benefits shall be heard and determined by the Board.

(2) Entitlement to benefits under the insurance plan is in lieu of all rights of action (statutory or otherwise) that a worker, a worker's survivor or a worker's spouse, child or dependant has or may have against the worker's employer or an executive officer of the employer for or by reason of an accident happening to the worker or an occupational disease contracted by the worker while in the employment of the employer.

27(1) Sections 28 to 31 apply with respect to a worker who sustains an injury or a disease that entitles him or her to benefits under the insurance plan and to the survivors of a deceased worker who are entitled to benefits under the plan.

(2) If a worker's right of action is taken away under section 28 or 29, the worker's spouse, child, dependant or survivors are, also, not entitled to commence an action under section 61 of the Family Law Act.

28(1) A worker employed by a Schedule 1 employer, the worker's survivors and a Schedule 1 employer are not entitled to commence an action against the following persons in respect of the worker's injury or disease:

1. Any Schedule 1 employer.
2. A director, executive officer or worker employed by any Schedule 1 employer.

(2) A worker employed by a Schedule 2 employer and the worker's survivors are not entitled to commence an action against the following persons in respect of the worker's injury or disease:

1. The worker's Schedule 2 employer.
2. A director, executive officer or worker employed by the worker's Schedule 2 employer.

(3) If the workers of one or more employers were involved in the circumstances in which the worker sustained the injury, subsection (1) applies only if the workers were acting in the course of their employment.

(4) Subsections (1) and (2) do not apply if any employer other than the worker's employer supplied a motor vehicle, machinery or equipment on a purchase or rental basis without also supplying workers to operate the motor vehicle, machinery or equipment.

29(1) This section applies in the following circumstances:

1. In an action by or on behalf of a worker employed by a Schedule 1 employer or a survivor of such a worker, any Schedule 1 employer or a director, executive officer or another worker employed by a Schedule 1 employer is determined to be at fault or negligent in respect of the accident or the disease that gives rise to the worker's entitlement to benefits under the insurance plan.
2. In an action by or on behalf of a worker employed by a Schedule 2 employer or a survivor of such a worker, the worker's Schedule 2 employer or a director, executive officer or another worker employed by the employer is determined to be

at fault or negligent in respect of the accident or the disease that gives rise to the worker's entitlement to benefits under the insurance plan.

(2) The employer, director, executive officer or other worker is not liable to pay damages to the worker or his or her survivors or to contribute to or indemnify another person who is liable to pay such damages.

(3) The court shall determine what portion of the loss or damage was caused by the fault or negligence of the employer, director, executive officer or other worker and shall do so whether or not he, she or it is a party to the action.

(4) No damages, contribution or indemnity for the amount determined under subsection (3) to be caused by a person described in that subsection is recoverable in an action.

[16] In *Decision No. 1460/02*, the Panel noted that the Tribunal is not required to apply Board policy in right to sue applications, as section 126 of the Act refers to appeals, not applications. The Panel, however, also noted that it is important to maintain consistency with findings that might have been made had the case come to the Tribunal by way of appeal from a decision regarding entitlement. Therefore, Board policy continues to be relevant in right to sue applications. See *Decision No. 755/02*.

[17] In determining this application I have considered the following Board documents from the WSIB's *Operational Policy Manual (OPM)*:

- OPM Document No. 15-02-02 entitled "Accident in the Course of Employment";
- OPM Document No. 15-03-08 on the Subject of "Personal Activities/Removing Self From Employment";
- OPM Document No. 15-03-04 entitled "Employer's Premises, Parking Lots, Roads, Plazas, Malls, Boundaries";
- OPM Document No. 15-03-05 entitled "Travelling";

(v) Analysis

[18] In this case, at the time of the accident on March 24, 2014, the Respondent was employed as a "senior job developer" by a non-profit employment agency. The respondent testified that his employer is funded to administer government employment programs, in which government provides a wage subsidy to employers who engage the services of employees who are placed with the employers. The respondent testified that his job involves matching suitable employees, who are his clients, with participating employers.

[19] The Respondent stated that on a typical day, he arrives at the office of his employer at about 8:30 a.m. He stated that he never works prior to 8:30 a.m. He stated that, typically, his activities in the office in the morning involve answering email messages, calling potential employers, referring clients' resumes to potential employers and preparing placement agreements. He stated that he usually takes a one hour lunch break at about noon, at which time he returns home for lunch. He stated that his home is located about 3 km from his office.

[20] The Respondent testified that he never performs work when he is at home during his lunch break. He stated that during his lunch break at home, he typically eats lunch, and that he may spend some time exercising on a treadmill, and that he also may watch sports highlights on TV.

[21] The Respondent stated that he typically concludes his lunch break at about 1:00 p.m., at which time he calls on potential employers, using his personal vehicle. He stated that he has usually completed his calls to potential employers after 3:00 p.m., and that he returns to his office usually at about 3:30 p.m. He stated that he continues working at his office until about 4:30 p.m., at which time he has completed his work day.

[22] The Respondent stated that, although he usually takes his one hour lunch break at noon, the start time for his lunch break is somewhat flexible, and that on some occasions he might start his lunch break somewhat earlier or later than noon, according to his own discretion. He testified that he returns home for his midday break about 95% of the time.

[23] The Respondent also stated that he rarely calls on potential employers in the morning, and that he would only see an employer in the morning if the employer demanded it. He stated that he could not recall that last time that he called on an employer before his lunch break.

[24] At the hearing, the Respondent testified that on March 24, 2014, the date of his accident, he parked his personal vehicle at a municipal parking lot that was located about a half a block from his office. He stated that he entered the parking lot and was approaching his vehicle when he slipped and fell in the lot. He stated that he heard a crack as he fell down, and that he was not able to stand up. He testified that he believed that the accident occurred shortly before 11:30 a.m. when he was going home for his lunch break on that date.

[25] At the hearing, the respondent's counsel produced a document which appears to be a printout of an electronic calendar for the week of March 24, 2014 to March 30, 2014. The document included several entries for Monday March 24, 2014, the date of accident. The first entry states:

12:30 pm to 1:00 pm webinar

[26] The Respondent testified that a "webinar" is a seminar program which provides information to the employees of the Respondent's employer through the internet. He stated that these programs are presented at his workplace and are shown on a large monitor set up in the office Boardroom, where all of the employees gather to view the "webinar" together. He noted that "webinars" were convened at his office infrequently. He stated that his attendance at the "webinar" was mandatory and that he had planned to return to the office following his midday break to view the "webinar" with his co-workers, but that because he sustained his injuries that resulted from his accident which occurred at about 11:30 a.m., he did not attend the "webinar" on March 24, 2014.

[27] The printout of the electronic calendar also showed the names of four parties, apparently potential employers, that the Respondent stated he had intended to meet with in the afternoon of March 24, 2014, after the "webinar" had been completed. The first of these names was listed beside the time "5:00 pm", and the other names were listed below at subsequent half hour intervals. The respondent indicated, however, that these times were "meaningless", in that he had included these appointments in his calendar for the afternoon, and his computer had automatically generated the times for each appointment. He testified that he had intended to see these potential employers in the afternoon, but not at the times indicated. The other days of the week shown on the calendar also indicated appointments beginning at 5:00 p.m. The respondent testified that these appointment times had been generated by his computer, and that although he intended to see these employers in the afternoon for the given dates, the times indicated in the calendar did not reflect the times when he planned to call on these individuals.

[28] The case materials included a copy of a transcript of an Examination for Discovery, on May 26, 2015, at the offices of a local Court Reporter. The transcript reflects the Examination for Discovery, on that date of the Respondent, in connection with the action which is the subject of this proceeding. The transcript stated, beginning at page 18, question 138:

138. Q. And when you left your place of employment that morning immediately before the slip and fall accident, where were you going to?
- A. My vehicle
139. Q. And what was the purpose of your going to your vehicle?
- A. Work
140. Q. Where were you going?
- A. To see an employer.
141. Q. And who was the employer you were seeing?
- A. I have no idea.
142. Q. I take it you did at the time.
- A. No. Oh! At the time I might have, yeah.
143. Q. Well, one would hope...
- A. Yes.
144. Q. ...so because you wouldn't know where you are going.
- A. I do visit about ten employers per day.

[29] The case materials included a document entitled, "Affidavit of [the Respondent]", which was sworn before a Commissioner for taking affidavits on April 28, 2017. At paragraph 11, the Affidavit states:

I acknowledge that at the Examinations for Discovery I stated that I was walking to my vehicle for the purpose of seeing an employer. That was inaccurate. What I meant to say was that I was leaving the office first for lunch, and then would be visiting an employer, as was my usual practice.

[30] I find as a fact, in this proceeding, on a balance of probabilities, that when the Respondent suffered his slip and fall accident in a municipal parking lot, shortly before 11:30 a.m. on March 24, 2014, it was his intention to go home for his lunch break, in keeping with his testimony at the application hearing before me. I have considered the prior inconsistent statement made by the Respondent at his Examination for Discovery on May 26, 2015, in which he stated that, just prior to the accident he was going to his vehicle for work, and that he also stated that it was his plan at that time "to see an employer."

[31] I find, however, that the Respondent provided a coherent account of his usual practice of going home for lunch around the noon hour, indicating that he would typically see potential employers after lunch. I found this account to be credible and logical, and in light of this account, I find that it was unlikely that the Respondent would be heading off to make calls to potential employers before his break.

[32] I have also taken into account the evidence of the electronic calendar that was produced at the hearing before me. There was no significant evidence before me that would cause me to conclude that the calendar did not provide an accurate representation of the Respondent's work

schedule on March 24, 2014, and (apart from the computer generated appointment times for the late afternoon) I find that it was such an accurate representation. The fact that the Respondent was scheduled to participate in a “webinar” back at his office at 12:30 p.m. on the date in question, makes it unlikely that he was planning to head off on visits to potential employers when he was approaching his vehicle at about 11:30 a.m. Further, the fact that the “webinar” was scheduled to begin at 12:30 p.m. provides a reasonable explanation for why the Respondent was taking his lunch break beginning shortly before 11:30, when he stated that it was his usual habit to take his lunch break at about noon.

[33] I also note that at his Examination for Discovery, the Respondent stated that he was carrying a briefcase in his left hand (see questions 225 to 227 at page 33 of the transcript of the Examination for Discovery). He also stated at the hearing before me that, at the time of his fall, he was carrying work files that he planned to work with after lunch. Upon re-examination, the Respondent indicated that was unsure about whether he was carrying any files, and that he might have left the files at the office, given that he was planning to return to the office after lunch to attend the “webinar”.

[34] Given that the Respondent stated at his Examination for Discovery that he was carrying a briefcase when he fell, and that when first questioned about the matter at the hearing before me, he also stated that he believed that he was carrying files, I find that it is probable that he was carrying files in a briefcase when he fell. This finding, however, does not affect my earlier finding that, immediately prior to his fall in the parking lot on March 24, 2014, it was the Respondent’s intention to go home for lunch, and that at the time of his fall, he was not intending to visit with potential employers before going home for his lunch break. I find that it would not be unreasonable or unexpected for the Respondent to load his briefcase into his vehicle before lunch, in preparation for his visits with potential employers that he planned to make after the “webinar” had been completed.

[35] Having found that at the time that the Respondent slipped and fell in the municipal parking lot he was intending to get into his vehicle and drive to his home for his lunch break, the question arises as to whether he was in the course of his employment at the time of the accident. At the hearing, both representatives referred to Board policy in support of their respective positions on the question of whether the Respondent was in the course of employment when the accident occurred. As is noted above, section 126(1) of the *Act* provides that “if there is an applicable Board policy with respect to the subject matter of an appeal, the Appeals Tribunal shall apply it when making its decision.” In this case the matter before me is not “an appeal”, but rather an application over which the Appeals Tribunal has exclusive jurisdiction. It follows that, in this application, the relevant Board policies are not necessarily applicable. However, to maintain consistency in the Tribunal’s decisions, it remains appropriate to consider the policies in a section 31 application, unless there is a good reason to depart from the policies, which are not mandatory in a section 31 application. One of the policy documents which was raised at the hearing is OPM Document No.15-02-02 entitled, “Accident in the Course of Employment”. That policy document states:

Policy

A personal injury by accident occurs in the course of employment if the surrounding circumstances relating to *place, time, and activity* indicate that the accident was work-related.

Guidelines

In determining whether a personal injury by accident occurred in the course of employment, the decision-maker applies the criteria of place, time, and activity in the following way:

Place

If a worker has a fixed workplace, a personal injury by accident occurring on the premises of the workplace generally will have occurred in the course of employment. A personal injury by accident occurring off those premises generally will not have occurred in the course of employment.

If a worker with a fixed workplace was injured while absent from the workplace on behalf of the employer or if a worker is normally expected to work away from a fixed workplace, a personal injury by accident generally will have occurred in the course of employment if it occurred in a place where the worker might reasonably have been expected to be while engaged in work-related activities.

Time

If a worker has fixed working hours, a personal injury by accident generally will have occurred in the course of employment if it occurred during those hours or during a reasonable period before starting or after finishing work.

If a worker does not have fixed working hours or if the accident occurred outside the worker's fixed working hours, the criteria of place and activity are applied to determine whether the personal injury by accident occurred in the course of employment.

Activity

If a personal injury by accident occurred while the worker was engaged in the performance of a work-related duty or in an activity reasonably incidental to (related to) the employment, the personal injury by accident generally will have occurred in the course of employment.

If a worker was engaged in an activity to satisfy a personal need, the worker may have been engaged in an activity that was incidental to the employment. Similarly, engaging in a brief interlude of personal activity does not always mean that the worker was not in the course of employment. In determining whether a personal activity occurred in the course of employment, the decision-maker should consider factors such as

- the duration of the activity
- the nature of the activity, and
- the extent to which it deviated from the worker's regular employment activities.

In determining whether an activity was incidental to the employment, the decision-maker should take into consideration

- the nature of the work
- the nature of the work environment, and
- the customs and practices of the particular workplace.

[36]

The portion of the policy document which addresses “Place”, provides that “if a worker has a fixed workplace, a personal injury by accident occurring on the premises of the workplace generally will have occurred in the course of employment.” The policy document also provides, however, that where a worker is normally expected to work “away from a fixed workplace” that “a personal injury by accident generally will have occurred in the course of employment if it occurred in a place where the worker might reasonably have been expected to be while engaged in work-related activities.”

[37] I find that the “place” and “time” at which the accident occurred in this case is not determinative of whether the accident occurred in the course of employment. Although the accident occurred at premises that were “away from a fixed workplace”, it might be considered to have occurred “in a place where the worker might reasonably have been expected to be while engaged in work-related activities”, depending on how the Respondent’s activity at the time of the accident is characterized. Similarly, in relation to “time”, since the Respondent had significant flexibility in how he managed his working time, this factor is also not determinative in this case of the question of whether the Respondent was in the course of employment at the time of the accident.

[38] In this case, considering the factors of “place”, “time” and “activity”, I find that “activity” has the greatest significance in determining whether the Respondent was in the course of his employment at the time of his accident.

[39] At the hearing, counsel for the applicant referred to the portion of the policy document under the subheading “Activity”, which states, “If a worker was engaged in an activity to satisfy a personal need, the worker may have been engaged in an activity that was incidental to the employment.” The submission was made on behalf of the Applicant that, if the respondent’s accident occurred while he was going to have lunch, this was an “activity to satisfy a personal need” (i.e., the need to sustain oneself with food), and that in keeping with the policy document, the Respondent should therefore be considered to have been engaged in an activity which was incidental to the course of employment at the time of the accident.

[40] I note however, in taking his lunch break, the Respondent was involved in an activity that went beyond merely obtaining sustenance from eating food. He testified that, while at home for lunch, in addition to eating food, he also typically exercised on a treadmill, or entertained himself by watching highlights from recent sporting events on TV. I conclude that these activities were not incidental to employment, but rather were separate from employment.

[41] Accordingly, considering the factors that are set out in OPM Document No. 15-02-02 entitled, “Accident in the Course of Employment”, the policy document tends to support the view that the worker was not in the course of employment at the time of the accident. In this case, I find that the Respondent’s lunch break was in the nature of a clear break from work activities, and that when he was embarking on the break, at the time of the accident, this was not an activity that was incidental to employment.

[42] I find that this interpretation is consistent with OPM Document No. 15-03-08, on the subject of “Personal Activities/Removing Self From Employment”. That policy document states:

Policy

An accident shall be considered to occur in the course of the employment when it happens on the employer’s premises as defined, unless at the time of the happening of the accident the worker is performing an act not incidental to the work or employment obligations.

Guidelines

Compensation benefits are not payable to a worker who is voluntarily out of the course of the employment. Such situations may include

- doing something outside the worker’s normal duties, such as transacting personal business, or

- going places having nothing to do with the worker's employment or doing something not reasonably expected of the worker.

[43] I find that when the Respondent was embarking on his lunch break at home, he was “doing something outside [his] normal duties”. I also find that, at the time of the accident, he was going to a place (i.e., home) which had “nothing to do with the worker's employment.” Although he was going home to eat lunch, an activity which in other circumstances might be incidental to employment, given the combination of activities that the worker typically performed at home on his midday break, I am not able to conclude that leaving work for the break was incidental to his employment.

[44] I have also considered OPM Document No. 15-03-04, entitled Employers’ Premises, Parking Lots, Roads, Malls, Boundaries. That policy document states, in part:

Policy

Workers are in the course of employment upon entering the employer's premises at the proper time, using an accepted entrance.

Workers are not in the course of employment when they leave the employer's premises, unless for the purpose of work (see 15-02-02, Accident in the Course of Employment and 15-03-03, On/Off Employers' Premises).

Accidents on employer's premises arise out of employment, unless

- for personal reasons, the worker used an instrument of added peril, for example, an automobile, motorcycle or bicycle. (For exceptions, see parking lots, below.)
- the act causing the injury does not relate to work or employment obligations.

Guidelines

Employer's premises

Definition

The building, plant or location of work, including entrances, exits, stairs, elevators, lobbies, parking lots, passageways and private roads.

Parking lots

- The employer must own or lease the parking lot.
- If driving, the condition of the employer's lot must cause the accident.
- If walking, the condition of the lot need not be a contributing factor.
- Workers are not entitled to compensation if injured by their own vehicle.

....

Plazas and malls

Workers are not in the course of employment in public parking areas not under the employer's control.

[45] This policy document also tends to support the conclusion that the Respondent was not in the course of employment at the time of his accident. The policy document states as a general principle that “workers are not in the course of employment when they leave the employer's premises, unless for the purpose of work.” In this case, at the time of his accident, the Respondent was not on the employer’s premises, but in a municipal parking lot. I have also found that at the time of the accident he was not approaching his vehicle for the “purpose of

work”, but rather that he was approaching his vehicle to take a break from work. I also note that the policy document provides that “workers are not in the course of employment in public parking areas not under the employer's control.” The location where the Respondent’s accident occurred was in such a “public parking area not under the employer's control.”

[46] Finally, I have also considered the Board’s OPM Document No. 15-03-05, entitled “Travelling”. That policy document states, in part:

Policy

As a general rule, a worker is considered to be in the course of the employment when the person reaches the employer's premises or place of work, such as a construction work site,

Guidelines

Travel on employer's business

When the conditions of the employment require the worker to travel away from the employer's premises, the worker is considered to be in the course of the employment continuously except when a distinct departure on a personal errand is shown. The mode of travel may be by public transportation or by employer or worker vehicle if the employment requires the use of such a vehicle. However, the employment must obligate the worker to be travelling at the place and time the accident occurred.

Proceeding to and from work

The worker is considered to be "in the course of employment" when the conditions of the employment require a worker to drive a vehicle to and from work for the purpose of that employment, except when a distinct departure on a personal errand takes place enroute.

"In the course of employment" also extends to the worker while going to and from work in a conveyance under the control and supervision of the employer.

[47] I find that this policy document also tends to support the conclusion that the Respondent was not in the course of his employment at the time of his accident. The policy document states that a person “is not in the course of employment when the person leaves the premises or place of work” and in this case, the Respondent’s accident occurred after he left the premises of his employer. An exception to this rule is provided in the policy document which states that “when the conditions of the employment require the worker to travel away from the employer's premises, the worker is considered to be in the course of the employment continuously except when a distinct departure on a personal errand is shown.”

[48] The policy document also indicates that in order to find that the worker was in the course of employment at the time of the accident, “the employment must obligate the worker to be travelling at the place and time the accident occurred.” Although the worker’s employment required him to travel to visit potential employers, I have found that at the time of the accident, he was going home for a break, and he had not yet begun his travels on behalf of the employer that day. His intended travel at the time of the accident was not required as a condition of his employment.

[49] I have also considered the Tribunal’s jurisprudence related generally to the question of whether a worker is in the course of employment when a worker leaves work to go on a lunch break. The Book of Authorities provided by the Respondent’s counsel included *Decision No. 1238/08*, which stated, beginning at paragraph 21:

The Tribunal's case law on "lunch breaks" has commonly found that a lunch break is a personal activity constituting a "distinct departure" from the employment. Case law has generally been consistent in finding that, where a worker has been based at his employer's premises and then leaves the premises for a lunch break, he ceases to be in the course of employment (see for example, *Decisions No. 280/91, 597/87, 817/87 and 2142/89*). *Decision No. 817/87* (August 28, 1987) offered the following rationale for that position, at page 8 of the decision, where the Panel stated that the worker's half-hour lunch break in that case:

... exposed [the worker] to a type of risk type different from and additional to that to which he would be normally exposed in the course of his ... work....

[50] I agree with *Decision No. 1238/08*, that in common circumstances, where a worker sustains a personal injury as a result of an accident after the worker leaves the work premises for a lunch break, apart from circumstances where Board policy provides an exception, the accident will not be considered to have occurred in the course of employment. Such an exception could arise where an accident occurs when a worker is travelling as a condition of his or her employment and at a location remote from the usual work premises. I find that these circumstances did not apply in this case. I find that in this case, the worker's accident occurred after he left the employer's premises, was in a public parking lot not under the employer's control, and he was about to go home for a break from work.

[51] The Applicant's Book of Authorities included *Decision No. 2296/08*, in which a worker was injured in an accident while the worker was leaving a restaurant after a lunch break from work. The decision concluded that the worker was in the course of employment at the time of the accident, on the basis that consuming food for sustenance is an activity which is incidental to employment. The Vice-Chair in that decision stated at paragraph 58:

Ultimately, I find the worker's need for sustenance and the satisfaction of that need to **not** be a "distinct departure on a personal errand." I accept Mr. Majesky's submissions that eating lunch is not a "personal errand." I do not find that eating lunch is any more a personal errand than using washroom facilities. These activities are not a matter of choice, they are matters of necessity in our everyday existence...

[52] I find that the case before me should be distinguished from *Decision No. 2296/08* on the basis that, in this case, the Respondent was going home for a break from work, which included activities other than eating, and that the break was taken as a clear break from work. The Respondent's decision to leave the workplace was not influenced by work factors. The worker in *Decision No. 2296/08*, on the other hand, had intended to eat a bag lunch at his work site, but had left the work site at his boss' request, to join his boss for lunch.

[53] I note that *Decision No. 2296/08* provided an extensive survey of the Tribunal jurisprudence and reviewed some cases where workers had been found to be in the course of employment while on a break, and other cases when the opposite conclusion was drawn. *Decision No. 1238/08* also reviewed relevant Tribunal case law. It is apparent from a review of these decisions that the determination of whether the worker was in the course of employment depended, in each case, on the particular facts of the case. In this case, the factor which I find is most significant relates to the Respondent's activity at the time of the accident. I find that the accident occurred when the Respondent was about to go home for lunch, not only to eat, but to participate in other activities which were clearly not work related, or incidental to work. On this basis, I find that the Respondent's midday break should be characterized as an activity that was predominantly not work related. I have also taken into account the fact that the accident

occurred in a public parking lot over which the Respondent's employer had no control. Accordingly, I find that when the Respondent sustained his injuries on March 24, 2014, he was not in the course of employment.

[54] For these reasons, the application is denied. The Respondent's right to sue the Applicant is not taken away by the Act.

DISPOSITION

[55] The application is denied.

[56] The Respondent's right of action against the Applicant is not taken away by the Act.

DATED: June 4, 2018

SIGNED: M. Crystal